

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Raquel Velasquez	Team: Squad #12	CCRB Case #: 201702786	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/05/2017 3:25 AM	Location of Incident: Barnes Avenue and East 228th Street	18 Mo. SOL 10/5/2018	Precinct: 47		
Date/Time CV Reported Wed, 04/05/2017 3:32 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 04/11/2017 11:01 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Barbetto	6815	954519	047 PCT
2. POM Anthony Hyde	8392	954954	047 PCT
3. An officer			047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Abuse: An officer questioned § 87(2)(b)	A . Officer(s) Unidentified
B . POM Anthony Hyde	Abuse: Police Officer Anthony Hyde searched the vehicle in which § 87(2)(b) was an occupant.	B . Unsubstantiated
C . POM Anthony Hyde	Abuse: Police Officer Anthony Hyde threatened to arrest § 87(2)(b)	C . Unsubstantiated
D . POM Anthony Hyde	Abuse: Police Officer Anthony Hyde questioned § 87(2)(b)	D . Unsubstantiated
E . POM Anthony Hyde	Abuse: Police Officer Anthony Hyde frisked § 87(2)(b)	E . Substantiated
F . An officer	Abuse: An officer searched the vehicle in which § 87(2)(b) was an occupant.	F . Officer(s) Unidentified
G . POM Michael Barbetto	Abuse: Police Officer Michael Barbetto searched the vehicle in which § 87(2)(b) was an occupant.	G . Unsubstantiated
H . POM Michael Barbetto	Abuse: Police Officer Michael Barbetto questioned § 87(2)(b)	H . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On April 5, 2017, § 87(2)(b) filed this complaint with IAB via telephone.

On April 5, 2017, at approximately 3:25 a.m., Police Officer Anthony Hyde and Police Officer Michael Barbetto, from the 47th Precinct, stopped § 87(2)(b)'s car for reckless driving **(Board Review 01)** at East 228th Street and Barnes Avenue in the Bronx. Additional unidentified officers also arrived at the scene. An unidentified officer questioned § 87(2)(b) **(Allegation A)**. PO Hyde allegedly searched § 87(2)(b)'s car, threatened to arrest § 87(2)(b) § 87(2)(b) questioned him, and frisked him **(Allegation B, C, D, and E)**. An unidentified officer also searched § 87(2)(b)'s car **(Allegation F)**. PO Barbetto also searched § 87(2)(b) § 87(2)(b)'s car and allegedly questioned § 87(2)(b) **(Allegation G and H)**. § 87(4-b) § 87(2)(g)

There is no video evidence in this case.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- § 87(2)(b) did not file a Notice of Claim regarding this incident **(Board Review 02)**.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s third CCRB complaint **(Board Review 04)**:
 - § 87(2)(b)
- Police Officer Anthony Hyde has been a member of the service for four years. There are no substantiated CCRB allegations against him § 87(2)(g)
- Police Officer Michael Barbetto has been a member of the service for four years. There are no substantiated CCRB allegations against him § 87(2)(g)

Findings and Recommendations

Allegation A: Abuse of Authority- An officer questioned § 87(2)(b)

It is undisputed that § 87(2)(b) was stopped and subsequently summonsed for § 87(2)(b) **(Board Review 01)**.

§ 87(2)(b) stated that he pulled over and immediately called 911 to report that he was stopped. He did not allege being questioned while he was in his car **(Board Review)**.

The 911 recording notes (at approximately 00:37) that a male voice faintly asks, "Do you have any weapons or drugs?" § 87(2)(b) replies, "No, I don't have any weapons or drugs" **(Board Review 08 and Board Review 09)**.

PO Hyde denied asking or hearing any officer asking § 87(2)(b) if he had any weapons or drugs on him while he was in his car. PO Barbetto stated that he did not recall asking § 87(2)(b) if he had any drugs or weapons in the car or on his person while § 87(2)(b) was in his car, and he was not sure whether any officer asked him these questions. When confronted with the recording of § 87(2)(b)'s 911 call, both officers denied hearing the questions being asked, despite hearing it twice, and stated that it appeared § 87(2)(b) himself stated that he did not have any weapons or drugs on him. Both PO Hyde and PO Barbetto acknowledged that additional officers arrived as § 87(2)(b) was pulled over. However, neither officer recalled who these officers were (**Board Review 06 and Board Review 07**).

There was one event (prompted by § 87(2)(b)'s 911 call) generated in regards to this incident. The event notes that only two units acknowledged the calls: Patrol Post 1 and STI. According to the 47th Precinct Tour 1 Roll Call, PO Hyde and PO Barbetto were assigned to Patrol Post 1 and Sgt. Seth Bellber and PO Jennifer Martinez were assigned to STI (**Board Review 11**). However, PO Jennifer Martinez's memo book documents that she was assigned as Sgt. Michael Kurek's operator. PO Martinez does not have any memo book entries regarding this incident (**Board Review 12**). Sgt. Kurek's memo book notes that at approximately 3:30 a.m., he backed up PO Hyde and PO Barbetto at East 227th Street and Barnes Avenue. There was no "34-assault in progress." A car stop was conducted by PO Hyde and PO Barbetto. At approximately 3:37 a.m., a summons was issued (**Board Review 13**).

The 47th Precinct Tour 1 Roll Call for April 5, 2017 shows that there were 20 white male officers (not including PO Hyde and PO Barbetto, 20 Hispanic male officers, and 3 black male officers on duty on the night of the incident (**Board Review 10**).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Officer Unidentified**.

Allegation B: Abuse of Authority- Police Officer Anthony Hyde searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that PO Hyde placed his head and upper body through the passenger window and reached towards his cellphone. § 87(2)(b) pulled his arm away and he and PO Hyde tussled back and forth for the cellphone. PO Hyde snatched the cellphone away and said, "He's here with the police," and disconnected the call. PO Hyde then placed the cellphone on the roof of the car and told § 87(2)(b) to exit the car. § 87(2)(b) unlocked the door and exited the car (**Board Review 05**).

The 911 recording notes the following conversation (from 00:37 seconds to 00:43 seconds): The 911 operator states, "227 and.." Simultaneously, a male voice asks, "Do you have any weapons or drugs?" § 87(2)(b) replies, "No, I don't have any weapons or drugs on me. Come on. No, I'm not putting the phone down. I'm 911." A male voice repeats, "Put the phone down." The 911 operator interjects, "227 Street and..." From 00:44 to 00:47 seconds, the audio recording

becomes muffled. Then, a male voice repeats, “Put the phone down. He’s with the police, ma’am. We have him. Thank you.” At 00:50 seconds, the call disconnects (**Board Review 08 and Board Review 09**).

PO Hyde stated that, upon approaching § 87(2)(b) s car, § 87(2)(b) stated that he was calling 911. PO Hyde responded that he was a police officer and asked for his license, registration, and insurance. § 87(2)(b) asked, “Why the fuck are you stopping me? What the fuck did I do?” PO Hyde was not sure whether the phone call was on speakerphone or if the volume was just loud, but the conversation between § 87(2)(b) and the 911 operator lasted approximately thirty seconds. PO Hyde interjected and stated out loud, “The police are here. We’re with the complainant. Sir, is there an emergency?” § 87(2)(b) responded, “No, what the fuck are you harassing me for? What did I do?” PO Hyde told § 87(2)(b) to hang up the phone and step out of the car. § 87(2)(b) asked why. PO Hyde told § 87(2)(b) more than twice and over the span of a few minutes to hang up phone, turn car off, and step out of the car. PO Hyde opened the driver side door so that § 87(2)(b) could step out of the car. § 87(2)(b) turned his car off and stepped out of the car. As he got out of the car, PO Hyde took the cellphone from § 87(2)(b) s hand and put it on the hood of the car or on top of the driver seat so that he would not be able to use it as a potential weapon or drop it on the ground. PO Hyde did not know if there was an active phone call when he grabbed the cellphone. PO Hyde did not know who disengaged the phone call. PO Hyde did not recall ending the 911 call. PO Hyde did not lean his head into § 87(2)(b) s car and he did not recall leaning his arm into his car. PO Hyde did not search § 87(2)(b) s car (**Board Review 06**).

PO Barbetto’s statement was consistent with PO Hyde’s. PO Barbetto stated that he did not and did not see any officer reach his head or hand into § 87(2)(b) s car and grab his cellphone (**Board Review 07**).

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **Unsubstantiated**.

Allegation C: Abuse of Authority- Police Officer Anthony Hyde threatened to arrest § 87(2)(b)

Allegation D: Abuse of Authority- Police Officer Anthony Hyde questioned § 87(2)(b)

§ 87(2)(b) stated that after exiting his car, the officers escorted him to the rear of his car. PO Hyde then stated to him, “Do you wanna go downtown? I’m gonna take you downtown.” § 87(2)(b) asked, “For what? I didn’t do anything.” § 87(2)(b) stood with his hands on the back of his car and PO Hyde asked § 87(2)(b) if he was drunk (**Board Review 05**).

PO Hyde stated that he did not threaten to arrest § 87(2)(b) but he might have informed him that reckless driving is an offense he could be arrested for. PO Hyde did not and did not hear any officer say, “Do you wanna go downtown? I’m gonna take you downtown.” PO Hyde stated that he only asked § 87(2)(b) if he had “any weapons or anything dangerous on him” (**Board Review 06**).

PO Barbetto stated that he did not threaten to arrest § 87(2)(b) and he did not recall hearing any officer doing so. PO Barbetto did not and did not hear any officer say to § 87(2)(b) “Do you want to go downtown? I’m gonna take you downtown.” PO Barbetto did not ask § 87(2)(b) if he was drunk, and he did not recall hearing any officer doing so **(Board Review 07)**.

§ 87(2)(g)

Therefore, it is recommended that **Allegations C and D** be closed as **Unsubstantiated**.

Allegation E: Abuse of Authority- Police Officer Anthony Hyde frisked § 87(2)(b)

§ 87(2)(b) stated that PO Hyde then patted his arms, chest, stomach, waist, and front pockets and then back pockets. The pat down lasted seconds. He wore a gray jacket with two pockets in the stomach area and jeans with two pockets in front and two in the back. He did not have any belongings in any of his pockets **(Board Review 05)**.

PO Hyde stated that after § 87(2)(b) exited his car and he asked if he had “any weapons or anything dangerous on him,” he proceeded to frisk § 87(2)(b)’s front pants pockets and waistband. PO Hyde stated that he asked § 87(2)(b) whether he had any weapons or anything dangerous on his person for his safety, because he had seen § 87(2)(b) reaching towards the center console area when the officers first approached his car. However, PO Hyde clarified that he later saw a cellphone in § 87(2)(b)’s hand and stated that it was possible he was reaching for the cellphone. PO Hyde did not recall what § 87(2)(b) wore, but his clothes were loose-fitted. He did not notice any bulges on § 87(2)(b) so he patted § 87(2)(b) to make sure he did not have any bulges. He did not recall the order of the pat down, but it lasted ten seconds. PO Hyde did not pat § 87(2)(b) anywhere else on his body **(Board Review 06)**.

PO Barbetto stated that PO Hyde only patted § 87(2)(b)’s waistband to make sure that he did not have any weapons. He added that PO Hyde did not pat § 87(2)(b) anywhere else on his body **(Board Review 07)**.

Despite the discrepancies regarding the extent of the frisk, given PO Hyde’s acknowledgement, the investigation determined that PO Hyde frisked § 87(2)(b)’s front pockets and waistband.

To frisk a person, an officer must have reasonable suspicion that a person stopped is armed and dangerous. People v. DeBour, 40 N.Y. 2d 210 (1976) **(Board Review 16)**. Such suspicions should be supported by observations or factors, such as a noticeable bulge. People v. Isaac, 107 A.D.3d 1055 (2013) **(Board Review 17)**.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **Substantiated**.

Allegation F: Abuse of Authority- An officer searched the vehicle in which § 87(2)(b) was an occupant.

Allegation G: Police Officer Michael Barbetto searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) alleged that one of the additional officers who responded to the scene entered through the front and back doors of his car, checked under the seats, and attempted to open the glove compartment. § 87(2)(b) did not recall the order in which this officer searched his car. He described this officer as a 25 to 29-year-old Hispanic male, who stood 5'6" tall, with an athletic build, and possibly had a full beard. § 87(2)(b) did not recall if this officer was in uniform and this officer did not talk to § 87(2)(b). § 87(2)(b) added that while this officer searched his car, PO Barbetto stood by his side. § 87(2)(b) did not allege that PO Barbetto searched his car (**Board Review 05**).

PO Hyde stated that after frisking § 87(2)(b) he escorted him to the rear of his car. PO Hyde asked § 87(2)(b) for his license and § 87(2)(b) retrieved his license from his pocket and handed it to PO Hyde. PO Hyde asked, "Where's your registration?" § 87(2)(b) responded, "It's in the car. Get it." PO Hyde asked where. § 87(2)(b) responded, "The glove compartment." PO Barbetto went to the passenger side of § 87(2)(b)'s car, opened the passenger side door, opened the glove compartment, and retrieved the registration and insurance. PO Hyde did not see PO Barbetto search through the glove compartment. PO Barbetto returned to the rear of § 87(2)(b)'s car and handed the documents to PO Hyde. PO Hyde acknowledged that additional officers arrived at the scene, but he did not recall who these officers were. PO Hyde did not see any other officer enter or search § 87(2)(b)'s car (**Board Review 06**).

PO Barbetto also stated that PO Hyde asked § 87(2)(b) for his registration and § 87(2)(b) stated, "I don't have it. It's in the vehicle. Go get it." § 87(2)(b) said that the registration was in the glove compartment. PO Barbetto said okay. PO Barbetto then entered § 87(2)(b)'s car through the driver side, reached over, opened the glove compartment, and obtained the registration card. He did not recall what was inside the glove compartment and he did not know whether there were other documents inside the glove compartment or whether he had to go through it to find it. Using a flashlight, PO Barbetto looked, but did not touch anything, in the center console area where § 87(2)(b) had reached earlier, and underneath the seat, to make sure there were no weapons. PO Barbetto did not recall opening any of the rear doors and he did not recall entering the vehicle through any other door. PO Barbetto also acknowledged that additional officers arrived at the scene, but he also did not recall who these officers were. PO Barbetto did not recall seeing any other officer entering or searching § 87(2)(b)'s car (**Board Review 07**).

§ 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that **Allegation F** be closed as **Officer Unidentified**.

Both officers stated that § 87(2)(b) granted PO Barbetto consent to enter his car and obtain his registration card. However, § 87(2)(b) did not acknowledge that such conversation took place. § 87(2)(g)

Therefore, it is recommended that **Allegation G** be closed as **Unsubstantiated**.

Allegation H: Abuse of Authority- Police Officer Michael Barbetto questioned § 87(2)(b)

§ 87(2)(b) stated that while PO Barbetto stood next to him at the rear of his car, PO Barbetto asked him, “Do you have weapons?” (**Board Review 05**)

PO Barbetto acknowledged remaining with § 87(2)(b) at the rear of his car. However, PO Barbetto did not recall asking § 87(2)(b) if he had any weapons, and he did not recall hearing any officer doing so (**Board Review 07**).

PO Hyde stated that he did not hear any other officer ask § 87(2)(b) if he had any weapons on him and he denied doing so himself (**Board Review 06**).

§ 87(2)(g) Therefore, it is recommended that **Allegations G** and **H** be closed as **Unsubstantiated**.

§ 87(4-b), § 87(2)(g)

Squad: 12

Investigator: _____
Signature Print Date

Squad Leader: _____

Title/Signature

Print

Date